



RESEARCH PAPER ASSIGNMENT

Topic:
Constitutional Evolution of
Pakistan: From Critiques to
Future Implications

Problem Statement

Pakistan, a nation with a turbulent political history, has witnessed numerous constitutional amendments since its independence. These amendments have significantly shaped the country's political landscape, impacting governance, power dynamics, and democratic processes. However, the long-term consequences of these changes remain a subject of debate and controversy. This research aims to critically analyze the impact of key constitutional amendments, particularly the 16th, 18th, and the proposed 26th Amendments, on Pakistan's political system.

Synopsis

This research paper delves into the complexities surrounding three significant constitutional amendments in Pakistan: the 16th, 18th, and the proposed 26th Amendments. It examines their implications for the country's political landscape, democratic governance, and judicial independence. The analysis highlights these amendments, drawing upon legal and political perspectives.

Objectives

- * To examine the historical context, political motivations, and legal implications of these amendments.
- * To analyze the impact of these amendments on Pakistan's federalism, democracy, and judicial independence.
- * To evaluate the positive and negative consequences of these reforms.
- * To assess the potential impact of the proposed 26th Amendment.

Research Questions

1. How have the 16th, 18th, and proposed 26th Amendments impacted Pakistan's federal structure?
2. What are the implications of these amendments for democratic governance in Pakistan?
3. How have these amendments affected the balance of power between the federal and provincial governments?
4. What are the potential consequences of the proposed 26th Amendment for the judiciary and the rule of law?

Literature Review

A comprehensive review of existing literature reveals a diverse range of perspectives on constitutional amendments in Pakistan. Scholars have examined the impact of these changes on various aspects of governance, including federalism, provincial autonomy, and judicial independence. Studies have highlighted the potential benefits of these amendments, such as promoting democracy, enhancing accountability, and addressing regional disparities. However, concerns have also been raised about the unintended consequences of these reforms, including political instability, institutional weaknesses, and the erosion of democratic norms.

Findings and Discussion

- **16th Amendment**

(The Quota System)

Intended Purpose: To promote inclusivity and represent marginalized groups. The quota system in Pakistan, implemented to address historical inequalities and ensure representation of marginalized groups, has been a subject of considerable debate. While proponents argue that it promotes inclusivity and social justice, critics contend that it compromises merit, exacerbates regional tensions, and violates fundamental principles of equality.

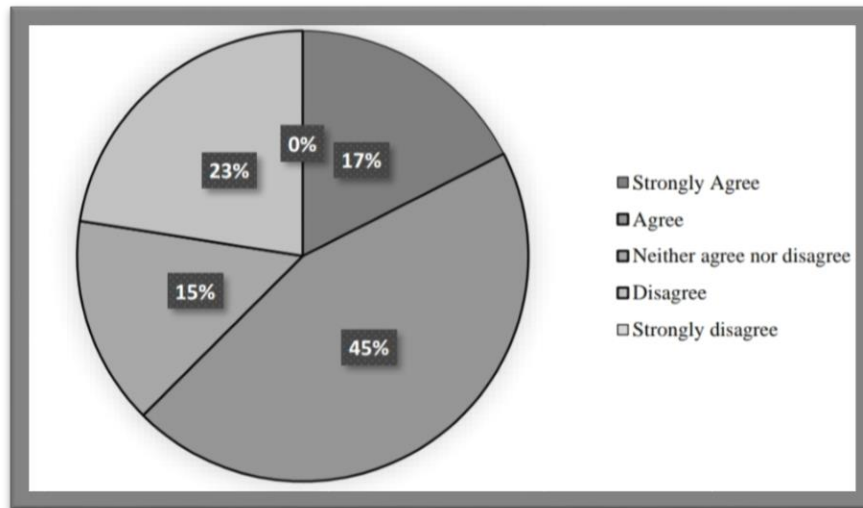
A Critical Perspective:

- **Compromise of Merit:** Critics argue that the quota system can compromise meritocracy, leading to the selection of less qualified individuals.
- **Exacerbation of Regional Tensions:** The quota system may exacerbate regional tensions, as it can lead to resentment among non-quota beneficiaries.
- **Lowering Standards:** The quota system can lead to a lowering of standards for recruitment, as candidates may be selected based on their quota status rather than their merit.
- **Lack of Self-Reliance:** The quota system can create a culture of dependency, as individuals may rely on quotas rather than their own abilities.
- **Violation of Constitutional Principles:** Some argue that the quota system violates fundamental constitutional principles, such as equality before the law.

Legal Challenges:

- The Supreme Court has declared parts of the 16th Amendment unconstitutional, citing violations of fundamental rights.

Dissatisfaction with Provision of Quota System in Pakistan:



*Findings of Research:
Pakistan Public
Administration Research
Center under the
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Government of Pakistan

Conclusion:

In conclusion, while the quota system was initially intended to address historical injustices, its long-term impact and effectiveness are subject to debate. To ensure a fair and equitable society, it is crucial to re-evaluate the quota system and consider alternative approaches that promote inclusivity and equality without compromising merit.

References:

- Literature review
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 2. www.dawn.com/news/1511727.
- Intended Purpose
 3. www.dailyparliamentariantimes.com--quota-system-.
 4. <http://tribune.com.pk/story/1553353/quota-system-pakistan>
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 5. <http://tribune.com.pk/story/1553353/quota-system-pakistan>.
 6. Constitution of the Islamic Republic of Pakistan 1973." Common Lii. 1973.
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• *18th Amendment*

(Provincial Autonomy)

Intended purpose: To restore the country's parliamentary form of government, strengthen key institutions, and improve relations between the center and provinces.

Key features:

The 18th Amendment to the Constitution of Pakistan, enacted in 2010, is considered a landmark reform that significantly devolved power to the provinces, strengthened democratic institutions, and enhanced fundamental rights. This paper focuses on the impact of the 18th Amendment on provincial autonomy, exploring its potential to address historical grievances, promote equitable development, and strengthen democratic governance.

Strengthening Provincial Autonomy:

The 18th Amendment has significantly strengthened provincial autonomy by:

- **Devolving Powers:** The amendment devolved several key powers from the federal government to the provinces, including control over natural resources, police, and education.
- **Financial Autonomy:** Provinces were granted greater financial autonomy, with increased share in federal divisible pool and the ability to levy taxes.
- **Legislative Powers:** Provincial legislatures were empowered to enact laws on a wider range of subjects.

Conclusion:

The 18th Amendment represents a significant step towards strengthening provincial autonomy and promoting democratic governance in Pakistan. However, its long-term impact will depend on effective implementation, capacity building, and inter-provincial cooperation.

LITERATURE REVIEW

A comprehensive review of existing literature reveals a diverse range of perspectives on the impact of the 18th Amendment. Some scholars argue that the amendment has strengthened democratic governance and promoted social justice. Others contend that it has weakened the federal government, undermined judicial independence, and exacerbated political polarization.

References:

- Literature review

1. Pakistan Journal of Humanities & Social Sciences Research Volume No. 04, Issue No. 02 (December, 2021)
2. Impact of the Eighteenth Constitutional Amendment on Provincial Autonomy in Pakistan (Gul Abdul Majeed* Muhammad Ibrarullah Qureshi* Dr. Sara Qayum*)

- Intended Purpose

1. Iram Kalid, "Politics of Federalism in Pakistan: Problems and Prospects," Journal of : South Asian Studies A Research Journal of South Asian Studies Vol. 28, No. 1, January – June 2013, (199-212)210.

- Key features and Support Arguments

1. The Constitution of 1973, Article 144. Also see for; (Eighteenth Amendment.) Act, 2010 (10 of 2010) Sect 51.
2. Dr. Kaisar Bengali, Head Chief Minister"s Policy Reforms Unit Government of Balochistan, DAP, UNDP Vol. 2, Issue 1, and April 2015 Five years of the 18th Amendment Page: 19

- **26th Constitutional Amendment**
(Judicial Reforms)

Intended purpose: To bring what it says are judicial reforms in the country's "wider interest".

Key features:

- **The composition of the Judicial Commission of Pakistan:** The amendment has changed the composition of the Judicial Commission of Pakistan to also include two members of the National Assembly, two members of the Senate and one woman or non-Muslim member, to be nominated by the Speaker of the National Assembly. The Law Minister, the Attorney General of Pakistan, and a representative of the Bar were already members of the JCP and remain so.

Criticism:

These changes in the JCP's composition allow for direct political influence over it, and reduce the JCP's judicial members to a minority.

- **Administrative powers of the Judicial Commission of Pakistan:** In addition to nominating judges for appointment, the JCP has been given the power to determine and nominate "constitutional benches" within the Supreme Court and High Courts. These benches shall have exclusive jurisdiction over matters involving interpretation of the Constitution and enforcement of fundamental rights.

Criticism:

There is serious concern that these JCP-appointed benches will not be independent and impartial.

- **Appointment of the Chief Justice of Pakistan:** The 26th Constitutional Amendment has amended the Constitution to give a "Special Parliamentary Committee" (SPC) consisting of eight members of the National Assembly and

four members of the Senate the power to nominate the CJP from among the three most senior Supreme Court judges.

Criticism:

The 26th Constitutional Amendment outlines no grounds or criteria on the basis of which the SPC is to nominate the CJP.

- **Removal on the ground of “inefficiency”:** The amendments provide the Supreme Judicial Council (SJC) – a judicial body responsible for recommending judges for removal – may recommend judges of the Supreme Court and High Courts for removal if it finds they “may be inefficient in the performance of the duties” of their office.

Criticism:

These amendments directly violate Article 14 of the International Covenant on Civil and Political Rights (ICCPR), which guarantees the right to equality before courts and tribunals and to a fair and public hearing by a competent, independent and impartial tribunal established by law.

Conclusion:

Given the process, political setting, and the far-reaching changes the 26th Amendment enacted, a prolonged constitutional controversy and the sword of judicial review will always hang over this amendment. (*VerfBlog*)

References:

- **Intended purpose:**
 1. <https://www.dawn.com/news/1866480>
 - **Key features and criticism:**
 2. <https://www.icj.org/pakistan-26th-constitutional-amendment-is-a-blow-to-the-independence-of-the-judiciary/>
 - **Conclusion:**
 3. <https://verfassungsblog.de/pakistans-26-constitutional-amendment/>
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Conclusion

The three amendments analyzed in this paper have had a profound impact on Pakistan's political landscape. Constitutional amendments in Pakistan have had a profound impact on the country's political landscape. While some have been successful in addressing specific issues, others have created new challenges. It is crucial to carefully evaluate the long-term consequences of these reforms and to ensure that they are in the best interests of the nation.

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